

Faculty

A faculty member might say they should own the product because they originated the research idea, guided the project, and provided the student with the knowledge needed to conduct the research. In many academic settings, intellectual contribution (not just execution) is part of what makes someone an inventor for patents and creative works. Under academic norms, supervisors often share credit with students on research outputs such as journal papers or inventions when students make a significant contribution to the work's conception or design.

However, at the University of Windsor, the research policies emphasize creator-owned intellectual property, meaning the inventor(s) (those who created the IP) retain ownership and can decide whether to involve the university in protection and commercialization. Articles 34-36 of the Windsor University Faculty Association Collective Agreement require all researchers to disclose any new technology and/or patent application(s) to the Research Partnerships Office. Inventors then choose if they want the university's help in protection or commercialization, but being a supervisor does not automatically grant ownership to the faculty member.

Student

The graduate student might claim ownership because they did all the work, developed the product, and reduced the idea to a commercializable invention. Students are regarded as creators in many jurisdictions. They are entitled to own the intellectual property they produce, particularly if they were not working for the university and completed the work independently.

At UWindsor, although a formal student IP policy is still under development, the creator-owned IP principle applies to all inventors, which includes graduate students. Thus, even before the university is involved, the student has the right to seek protection or commercialize the intellectual property.

Furthermore, although this mainly pertains to scholarly publications rather than patentable inventions, the Graduate Studies Copyright & Authorship resources treat copyright in theses and papers as student matters and highlight students' roles as principal authors of their research.

University

The University of Windsor may assert rights because the invention was created within its facilities, using its resources, and under supervision aligned with university programs. Although UWindsor's official position is "creator-owned IP," if technology is disclosed and commercialization agreements are signed, the university may end up owning or managing the IP through its Technology Transfer Office.

This means the university doesn't automatically own every invention. Still, if the inventors choose university support (e.g., patent filing through ORIS), they typically sign agreements that assign ownership rights to the university in exchange for commercialization support. Additionally, the university often considers the use of its resources and labs when deciding on ownership or revenue sharing.

Canadian universities also operate within broader legal frameworks (e.g., Patent Act, Copyright Act) that recognize creators' rights but allow institutional agreements to reassign rights for commercialization.

In conclusion, at the University of Windsor, there is no automatic rule that the faculty or university owns the product simply because of supervision or use of facilities. The policies emphasize that creators (students or faculty) initially own the IP and can choose whether to involve the university in protecting or commercializing it. However, if they seek university support, they usually sign agreements transferring ownership to the university for commercialization with revenue-sharing. Therefore, while the student did the work and the faculty provided idea and guidance, both are creators and could share invention ownership; the university may then manage the IP through a formal agreement.

References

Copyright and Authorship resources. (2021). Uwindsor.ca.

<https://www.uwindsor.ca/graduate-studies/382/copyright-authorship>

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